

NORTHWIND LOGISTICS - MASTER SERVICES AGREEMENT (FICTIONAL)

1. Engagement

Vendor shall provide the organization, management, and coordination of the logistics services and the development of the operating plan described herein. Client shall afford Vendor a reasonable opportunity to review and provide input on the form and content of the operating plan, and confirm that Vendor data is accurately described and identified in it prior to submission to the Steering Board.

2. Subcontracting

Vendor and Client shall endeavor in good faith to negotiate and enter into a subcontract setting forth the scope of services and the basis for compensation, and shall incorporate the agreed terms of the Master Agreement. Each of Vendor approved subcontractors will have an obligation to meet certain diversity sourcing requirements for their respective work segments under this Agreement.

3. Services

- a. Planning-Phase Services: Vendor shall provide such technical and pricing input in support of the development of a responsive operating plan as Client may request pursuant to written task orders issued from time to time during the term hereof.
- b. Post-Award Services: Subsequent to award, in the event Client requires services prior to execution of the subcontract, the parties shall execute a limited notice to proceed that identifies the early work and establishes the applicable compensation.
- c. Ownership of Documents: Unless otherwise agreed by Client in writing, all the materials resulting from the Services, including drawings, specifications, reports, samples, and other documents, shall be deemed the property of Client and shall be furnished to Client upon its request at the conclusion of the engagement period.

4. Compensation and Reimbursement

Client will reimburse Vendor for direct labor costs times the labor multiplier stipulated below, plus approved other direct costs incurred in the performance of the Services. Direct labor costs shall mean wages and salaries actually paid to the Vendor personnel, with no amounts added for profit or fee on such labor costs.

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